Smt. Deepa Sharma And 3 Ors vs State Of U.P. And Anr on 7 August, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:134145

Court No. - 75

Case :- APPLICATION U/S 482 No. - 3232 of 2019

Applicant :- Smt. Deepa Sharma And 3 Ors

Opposite Party :- State Of U.P. And Anr

Counsel for Applicant :- Ishir Sripat,Pramod Kumar

Counsel for Opposite Party :- Avijit Saxena,G.A.,Ramashray Tripathi,Randhir Singh

Hon'ble Vikas Budhwar,J.

1. Heard Sri Ishir Sripat, learned counsel for the applicants and Sri S.K. Singh, learned A.G.A. for the State as well as counsel for the opposite party no. 2.

2. The applicants herein has filed the present application u/s 482 Cr.P.C. for quashing of the entire criminal proceeding against the applicants arising out of Case No. 9642 of 2018 (State Vs. Deepa Sharma and others) arising out of Charge Sheet No. 476 of 2017 dated 20.10.2017 in Case Crime No. 2444 of 2017, under Sections 323, 506 I.P.C., Police Station Sahibabad, District Ghaziabad, pending in the court of Chief Judicial Magistrate, Ghaziabad.

3. This Court on 25.01.2019 proceeded to pass the following orders:

> "Heard learned counsel for the applicants and learned A.G.A. for the State.

The present 482 Cr.P.C. application has been filed to quash the entire criminal proceedings of Case No. 9642 of 2018 (State Vs. Deepa Sharma and others) arising out of Charge Sheet No. 476 of 2017 dated 20.10.2017 in Case Crime No. 2444 of 2017, under Sections 323, 506 I.P.C., Police Station Sahibabad, District Ghaziabad, pending in the court of Chief Judicial Magistrate, Ghaziabad.

Learned counsel for the applicant submits that the present dispute arising out of family dispute and due to which the present proceeding has been initiated against the father-in-law, mother-in-law and sister-in-law by the opposite party no. 2 with the allegation that they all have beaten one year old daughter of the opposite party no. 2. It is further submitted that the applicant nos. 1 and 2 are grandfather and grandmother and the applicant nos. 3 and 4 are aunts of the victim. It is next submitted that in fact earlier the opposite party no. 2 has initiated six criminal proceedings from time to time against the applicants under Section 498A I.P.C., Domestic Violence Act etc. and many other sections of I.PC. It is further submitted that only intention of the opposite party no. 2 is to live separately with her husband from the family members of her husband and, therefore, the present criminal proceedings have been initiated against the applicants.

Matter requires consideration.

Notice on behalf of opposite party no. 1 has been accepted by learned A.G.A.

Issue notice to opposite party no.2 returnable at an early date.

Opposite parties may file their counter affidavits within six weeks. Rejoinder affidavit may be filed within two weeks thereafter.

List this case on 28.3.2019 before appropriate Bench.

Till the next date of listing, further proceedings of the aforesaid case shall remain stayed against the applicants.

This case shall not be treated as tied up or part heard to this Bench."

4. Learned counsel for the applicants has submitted that there happens to be settlement agreement dated 29.05.2024 between the parties settling the dispute before the Mediation and Conciliation Centre, Lucknow Bench, para-6 of the Settlement Agreement is quoted hereinunder:

"6. The following settlement has been arrived at between the Parties hereto:-

A. That both the parties namely Dhirendra Kaushik (First Party/husband) and Beenu Sharma (Second Party/wife) have mutually agreed to dissolve their marriage and to live separately in future and for the purpose of dissolution of their marriage the

parties have already filed a petition for divorce with mutual consent U/S 13-B Hindu Marriage Act, 1955 before Family Court, Ghaziabad bearing R. S. No. 1458 of 2024. Both the parties herein undertake to appear before the concerned Court on the date(s) fixed and would make their earnest endeavour to obtain a decree of divorce in terms of this settlement at the earliest.

B. That the First Party has agreed to pay to the Second Party and the Second Party has agreed to receive from the First Party a total sum of Rs.22,00,000/- (Twenty Two Lacs only) towards one time full and final settlement of all the claims against First Party including the claim for temporary/permanent alimony and expenses for maintenance & welfare of their daughter namely Anshika, who was born out of the wedlock of both the parties.

C. That both the parties have agreed that the aforesaid amount Rs.22,00,000/- (Twenty Two Lacs only) would be paid to the Second Party/wife in two installments. The first installment of Rs. 11,00,000/-(Eleven Lacs only) will be paid by the First Party/husband to the Second Party/wife on the date of entering into settlement agreement before the Mediation and Conciliation Centre, Allahabad High Court, Lucknow in the shape of Demand Drafts to be prepared in such a manner that an amount of Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife- Beenu Sharma @ Beenu Tiwari and Rs. 5,50,000/-(Five Lacs Fifty Thousand only) be paid to their daughter Anshika. The second installment of Rs. 11,00,000/- (Rupees Eleven Lacs Fifty Thousand) will be paid by the First Party/husband to the Second Party/wife in the shape of Demand Drafts be prepared in such a manner that an amount of Rs 5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife-Beenu Sharma @ Beenu Tiwari and Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to their daughter Anshika at the time of second motion of the joint petition for divorce bearing R.S. No. 1458 of 2024 U/S 13-B Hindu Marriage Act, 1955 before Principal Judge, Family Court, Ghaziabad.

D. That in accordance with clause 6 (C), the First Party has handed over two Demand Drafts to the Second Party today ie 29.05.2024. The Second Party acknowledges the receipt of the same. The details of the Demand Drafts are mentioned hereunder:-

(I) D. D. No. 902635 dated 17.05.2024 amounting to Rs.5,50,000/- (Five Lacs Fifty Thousand only) drawn on State Bank of India in favour of Beenu Tiwari Canara Bank AC No. 110105274497.

(II) D. D. No. 902648 dated 20.05.2024 amount to Rs.5,50,000/-(Five Lacs Fifty Thousand only) drawn on State Bank of India in favour of Anshika D/O Beenu Tiwari
E. That the parties have agreed that the custody of their daughter Anshika would remain with the Second Party and it would be the responsibility of the Second Party to bear all the expenses to be incurred towards bringing up of Anshika viz education,

daily needs, marriage etc. F. That the First Party has agreed that he shall not claim the custody of Anshika in future.

G. That the parties have agreed to withdraw/not press/not to pursue the cases filed against each other and their family members. The details of the cases are mentioned hereunder:

1. FIR No. 356 of 2016 under Sections 323, 504, 506, 376, 511 of Indian Penal Code Government of U. P. Vs. Dhirendra Kaushik and Other) Police Station Sahibabad, District Ghaziabad.

2. FIR number 2131/2016 under sections 498, 323, 354, 354, 354 N, 504, 506 of the Indian Penal Code, Government of U. P. Vs. Dhirendra Kaushik and Others, Police Station- Sahibabad District Ghaziabad.

3. Case No. 2830 of 2017 in Case Crime No. 1563 of 2017 (Government of U. P. Vs. Yagyaval Sharma and Other) Police Station-Sahibabad, District-Ghaziabad.

4. FIR No. 2444/2017 (Government Of U. P. Vs. Deep Sharma and Others) Police Station Sahibabad, District-Ghaziabad.

5. Complaint number 13966 year 2017 Binu Sharma vs Vs. Dhirendra Kaushik and Others, Police Station-Sahibabad, District-Ghaziabad.

6. Case number 15965 year 2017 (Binu Sharma Vs. Deep Sharma and others) Police Station-Sahibabad District-Ghaziabad.

7. NCR Report No. 310 Year 2017 Section 323, 506 Indian Penal Code Government vs. Dhirendra Kaushik Police Station Sahibabad District Ghaziabad.

8. Complaint number 874 year 2018 (Binu vs. Dhirendra Kaushik and Others), U/S 125 Cr.P.C. Police Station Sahibabad District Ghaziabad.

9. Case number 384 year 2017 (Binu Sharma vs. Dhirendra Kaushik and Others) Police station Sahibabad District Ghaziabad.

10. Complaint No. 585 of 2019 (Binu Vs. Dhirendra Police Station- Sahibabad, District-Ghaziabad.

11. Case No. 4408 of 2017, (Binu v. Dhirendra Kaushik and others), Police Station-Sahibabad, District-Ghaziabad.

12. Case No. 4413 of 2017 (Binu Vs. Dhirendra Kaushik and others) Police Station-Sahibabad, District-Ghaziabad.

13. Case number 3694 of 2016, (Mrs. Binu Vs. Dhirendra Kaushik and Others) under Domestic Violence Act, Police Station-Sahibabad, District-Ghaziabad, whose revision number 3834 of 2022 is pending in the Honorable High Court, Allahabad.

14. FIR No. 1564 of 2017 under sections 323, 354, 354A of the Indian Penal Code vs. Binu Sharma, Police Station Sahibabad, District Ghaziabad.

15. Case No. 2217 2017 (Government of U.P. Vs. Binu Sharma), Police Station Sahibaba District-Ghaziabad.

H. That the Second Party has agreed that she shall not have any objection if the Hon'ble Court decides the APPLICATION U/s 482 No.4660 of 2023 (Dhirendra Kaushik & Others Vs State o U.P. & Another) in terms of this settlement agreement.

I. In addition to above mentioned case, if any other case(s) is pending between the parties, both the parties shall not have any objection if the casets) is disposed of by the Hon'ble Court in terms of this Settlement Agreement.

J. That it is also agreed between the parties that henceforth no case will be instituted by them against each other or any of their respective family members in future in the form of criminal or civil proceedings in respect of any dispute arising out of their marriage or any matter incidental thereto.

K. That both the parties shall be bound by the terms and conditions of this Settlement in strict sense. In case of any default, the party committing the default shall be liable for playing fraud with the Court hence for contempt of the Court. The Second Party has agreed that in case she fails to cooperate in the divorce proceedings, she shall be bound to return to the First Party the entire money received by her from the First Party along with interest @ 9% pa. with effect from the date of receipt of the amount/installment(s) and till the date of its actual payment to the First Party and the First Party will be at liberty to reopen his cases decided by theH on'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court Forum The First Party has agreed that in case he fails to attend and cooperate in the divorce case, the amount received by the Second Party from the First Party shall not be returned by the Second Party and the Second Party shall be at liberty to reopen her case(s) decided by the Hon'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court/Forum."

5. Learned counsel for the applicants submits that so far as the proceedings being Case No. 9642 of 2018 (State Vs. Deepa Sharma and others) arising out of Case Crime No. 2444 of 2017, under Sections 323, 506 I.P.C., Police Station Sahibabad, District Ghaziabad which is pending in the court of Chief Judicial Magistrate, Ghaziabad is concerned, the same as per the settlement between the parties in the settlement agreement dated 29.05.2024 in pursuance of the Lucknow Bench of this Court, finds place at serial no. 7 being NCR Report No. 310 year 2017, Section 323, 506 IPC. He submits that in view of the condition No. I of the para-6 of the Settlement Agreement, the parties are to withdraw all the criminal cases which are inter se pending between the parties.

6. Learned counsel for the applicants submits that with respect to the proceedings in case crime no. 356 of 2016, under Sections 498A, 323, 504, 506 read with 3/4 D.P. Act, police station Mahila Thana and summoning order dated 11.07.2017 is concerned, already a proceeding has been set aside in Application U/S 528 BNSS No. 32423 of 2024. He submits that there happens to be a counter affidavit filed by the opposite party no. 2 dated 23.10.2024 sworn by the opposite party no. 2, according to which, the proceedings in the present case is being requested to be quashed, wherein para-9 has been observed as under:

> "9. That the Respondent no. 2 most respectfully submits that the entire proceedings registered in pursuance of Case no. 9642 of 2018 (State Vs. Deepa Sharma and Others) arising out of Case Crime No. 2444 of 2017 under Section 323, 506 of the I.P.C, P.S.- Sahibabad, District-Ghaziabad pending before Learned Chief Judicial Magistrate Ghaziabad be quashed."

7. Learned AGA as well as counsel for the opposite party no. 2 do not dispute the said fact and now nothing remains to be further proceeded with.

8. Applying the principle of law in the case of Gian Singh v. State of Punjab and another 2012 (10) SCC 303 and State of Madhya Pradesh v. Laxmi Narayan, (2019) 5 SCC 688 and now nothing remains to be further adjudicated and proceedings are liable to be quashed.

9. Accordingly, the present application stands allowed, the proceedings of Case No. 9642 of 2018 (State Vs. Deepa Sharma and others) arising out of Charge Sheet No. 476 of 2017 dated 20.10.2017 in Case Crime No. 2444 of 2017, under Sections 323, 506 I.P.C., Police Station Sahibabad, District Ghaziabad, pending in the court of Chief Judicial Magistrate, Ghaziabad stands quashed as against the applicants.

10. Liberty is accorded to the opposite party no. 2 to move appropriate application in case, she is aggrieved.

Order Date :- 7.8.2025 A. Prajapati